



DECISION

Complaint No. : POS/495/2023/RM-18

Name and address of the complainant : Mr. Misbahuddin,
General Secretary, Masjid e Khizra Bukhari Parra,
Mirpurkhas.

Name of the Agency Complained against : District Education Officer (Primary) Mirpurkhas

Name & Designation of Investigating Officer : Mr. Zulfiqar Ali Junejo, T.I
Consultant/Regional Director, Mirpurkhas.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : **COMPLAINT AGAINST SCHOOL EDUCATION & LITERACY DEPARTMENT ALLEGING INORDINATE DELAY IN PAYMENT OF RENT OF SCHOOL BUILDING TO THE MASJID COMMITTEE**

Complaint

Mr. Misbahuddin, General Secretary Masjid-e-Khizra Mirpurkhas filed a complaint dated 18.01.2023 wherein he stated that two schools viz; Government Boys Primary School and Govt. Girls Primary School Rehmatullah are working in the premises of Masjid-e-Khizra on rent basis since long. The monthly rent of schools was fixed at Rs.2,792/- and Rs.1,395/- per month respectively which has not been paid after 30.06.2011 despite his efforts with the agency. Aggrieved by that, he solicited intervention of this Institution.

Proceedings

2. The complaint was admitted under section 10 of Establishment of the office of Ombudsman for the Province of Sindh Act 1991 (amended up to date) after receiving mandatory affidavit on Form-A, copy of CNIC and by condoning the delay.

3. This office issued a notice vide letter dated 31.01.2023 to the District Education Officer (Primary) Mirpurkhas for report and heard the case on various dates. The Director Schools Education (Primary) Mirpurkhas Division informed vide letter dated 01.01.2024 that the rent of both school buildings has not been paid to the Masjid committee after 2011 due to non-release of required funds by the School Education Department. The request has been forwarded to the Govt. of Sindh, School Education & Literacy Department Karachi vide letter dated 01.01.2024 for release of funds in order to clear the rental dues as under:

- (i) Rs.435,552/- (up to June 2024) for Government Boys Primary School, Rehmatulla, @ Rs.2,792/- per month.
- (ii) Rs.217,620/- (up to June 2024) for Govt. Girls Primary School Rehmatullah @ Rs.1,395/- per month.

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4. The Director Schools (Primary) Mirpurkhas vide his subsequent ~~vide~~ letter dated 12.02.2024 informed that the building of above-mentioned schools was in dangerous condition and both the schools have been shifted to nearby government schools and building of Masjid committee has been vacated.

5. The matter was taken up with the Secretary to Govt. of Sindh, School Education & Literacy Department Karachi vide letter dated 25.03.2025. In response, the Section Officer (B&F) School Education & Literacy Department Karachi vide letter dated 02.10.2025 required the following documents from the Director Schools Education (Primary) Mirpurkhas in order to process the case:

- (i) Rent agreement/evidence from owner regarding rent claim.
- (ii) Period of outstanding dues for rent of school building.
- (iii) Undertaking of owner as he did not claim for any payment in terms of rented building (non-payment certificate) an affidavit duly countersigned by Director Schools Education concerned.
- (iv) Reason/justification as to why payment could not paid during the period.

6. The Investigating Officer Mirpurkhas confirmed that no formal agreement was executed by the Masjid committee and the agency.

Findings

7. The investigation of the complaint revealed maladministration against the agency on its failure to execute a proper agreement with the Masjid Committee for payment of rent and failed to pay rent to the Masjid Committee since July-2011. The schools have been shifted from the building of Masjid Committee vide orders dated 12.02.2024. The Masjid Committee is entitled for getting rent from the agency for the period from July-2011 to Feb-2024.

Decision

8. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the Office of Ombudsman for the Province of Sindh, Act 1991 (amended up to date), I, hereby direct the Secretary to Govt. of Sindh, School Education & Literacy Department Karachi to clear the rent of school buildings to the Masjid Committee for the period from July-2011 to Feb-2024 subject to fulfilment of prescribed rules/procedure as per policy under intimation to this office within 60 days.

9. The complaint is disposed of in terms of Regulation 21(iii) of Investigation and Disposal of complaints Regulation 2024 of the Ombudsman Act.

Given under my hand and seal of the office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 16th December, 2025